

State of Vermont
Board of Allied Mental Health Practitioners

In Re:

CAROL P. (BROWN) GREENBERGER -
License No. 068-0000320

Docket No. MH05-0302

AMENDED VERSION - 07/18/03

Stipulation and Consent Order

NOW COME the State of Vermont, through its Prosecuting Attorney Robert H. Backus, and Respondent Carol P. [Brown] Greenberger, stipulate and agree follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners ("Board") has jurisdiction to take disciplinary action against a licensed clinical mental health counselor after hearing, and upon a finding of unprofessional conduct: 26 V.S.A. §§ 3263 and 3271; 3 V.S.A. §§129 and 129a; the Office of Professional Regulation's and the Board's Administrative Rules.
2. Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession is unprofessional conduct upon which the Board can take disciplinary action. 3 V.S.A. §129a(a)(3).
3. Conduct which evidences unfitness to practice clinical mental health counseling is unprofessional conduct upon which the Board can take disciplinary action. 26 V.S.A. §3271(a)(3).

Rules

4. Each licensed clinical mental health counselor must provide a disclosure statement, printed or typed in easily readable format, meeting the requirements of Rule 3.12(A) and 3.13. Rules Relating to Mental Health Counseling, Rule 3.12 and 3.13.

Facts

5. Respondent Carol P. [Brown] Greenberger, is a Mental Health Counselor holding license number 068-0000320, issued by the State of Vermont.
6. Respondent was originally licensed on or about February 27, 1997 and Respondent's license is set to expire on January 31, 2005.

7. In providing treatment to client NW, Respondent did not comply with all the requirements of Rules 3.12 and 3.13 of the Rules Relating to Mental Health Counseling.
8. In providing treatment to client NW, Respondent was occasionally late for the counseling sessions.
9. In providing treatment to client NW, Respondent occasionally used questionable language.
10. Respondent is currently in compliance with Rules 3.12 and 3.13 of the Rules Relating to Mental Health Counseling relating to the required disclosure statement.

Understandings

11. Respondent stipulates and agrees that the Board may find that the conduct set forth in paragraphs 8, 9, and 10 above, constitutes unprofessional conduct within the meaning of 3 V.S.A. §129a(a)(3) and 26 V.S.A. §3271(a)(3).
12. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
13. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
14. Respondent is not under the influence of any drugs or alcohol at the time she signs this Stipulation and Consent Order.
15. Respondent voluntarily enters this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
16. Respondent voluntarily waives her right to charges and a contested hearing before the Board.
17. Respondent waives any notification period and agrees to have this document reviewed by the Board during the next available meeting. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced her right to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board.
18. Respondent agrees that the Board may set forth the order below.

ORDER

Based on the stipulation above it is ORDERED AND ADJUDGED as follows:

A. Respondent acted unprofessionally and in violation of: 26 V.S.A. §3271(a)(3) (conduct which evidences unfitness to practice clinical mental health counseling); and 3 V.S.A. §129a(a)(3) (Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession is unprofessional conduct upon which the Board can take disciplinary action) specifically, Rule 3.12 and 3.13.

B. The Board of Allied Mental Health Practitioners hereby CONDITIONS Respondent's license for a minimum period of one year. The CONDITIONS on Respondent's license are as follows:

Supervision

1. These conditions shall commence the date of entry of this order, and shall continue for a minimum period of one year. Provided, however, that these conditions shall continue beyond one year if the supervisor referred to in paragraph 2, below, states in writing that such an extension is needed and the Board approves the extension.

2. During the term of this order Respondent shall engage in face-to-face supervision with a licensed psychologist or mental health counselor approved by the Board. The respondent shall submit the curriculum vitae of the potential supervisor, along with a letter from the supervisor indicating her/his willingness to provide clinical supervision; and disclosing any previous professional, community, or personal relationship the potential supervisor has had with the licensee prior to this request.

3. The supervisor's first role shall be to review the Respondent's current caseload. If the supervisor thinks that there are changes that should be made to either improve clinical treatment or avoid ethical violations, the Respondent shall take appropriate steps per the approval of the supervisor.

4. Respondent's program of supervision shall involve not less than one hour of supervision for every thirty hours of client contact. If, for any reason, the supervisor deems it necessary to end the supervisory relationship with Respondent, the supervisor shall immediately notify the Board of such termination of the supervisory relationship and the reason therefore. If such termination occurs, Respondent shall immediately undertake to establish a supervision relationship with a license professional acceptable to the Board or its designee and will not be required to suspend her practice if such arrangements are made and approved within a reasonable

period of time, not to exceed two months. If the process exceeds two months, Respondent shall not engage in the further practice of mental health counseling until a new supervisor has been approved by the Board.

5. The Board or its designee shall have full access to information from any supervising professional related to the matters set out above. In addition, substantive detailed reports by the supervising professional shall be submitted quarterly to the Board. The report shall address the Respondent's compliance with the laws and rules of the profession, and include a brief summary of all supervision contacts.

6. Respondent shall bear all cost associated with compliance with this order.

7. Respondent shall undertake, at the suggestion of the supervisor, suggested readings and/or course work. These shall be completed in a reasonable time.

8. Respondent shall provide a copy of this Stipulation and Consent Order to her current employer and to any other person who may become her employer during the term of this order. If Respondent becomes self-employed during the term of this order, she shall write to the Board's designee and state this.

Education

1. Respondent shall complete twelve (12) hour(s) of ethical training, acceptable to the Board, the minimum time per training being three (3) hours per session.

2. Respondent shall complete the above training within six (6) months of the date of entry of this order. Any training completed prior to the acceptance of this Order, but after the Charges had been filed, may be considered by the Board or its designee for purposes of meeting this requirement.

3. The above training shall be in addition to any continuing education or course work that is otherwise required for renewal.

4. Respondent shall bear all costs associated with the training.

C. If Respondent violates the terms of this Consent Order in any respect, the Board, after giving Respondent notice and an opportunity to be heard, may revoke the terms of the conditional license and take further disciplinary action.

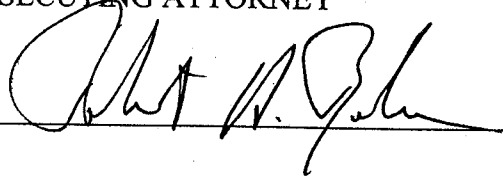
D. This Stipulation and Consent Order is a matter of public record and may be

reported to other licensing authorities as provided in 3 V.S.A. §129(a).

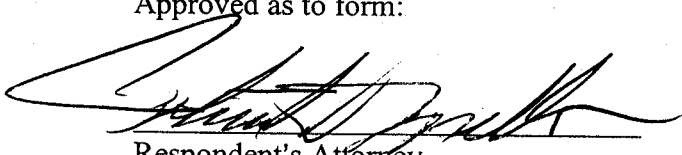
E. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

STATE OF VERMONT
ROBERT G. BACKUS
PROSECUTING ATTORNEY

Dated: 7/2/03

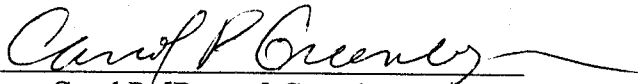
by: 

Approved as to form:


Respondent's Attorney

CAROL P. [BROWN] GREENBERGER
RESPONDENT

Dated: 7.31.03

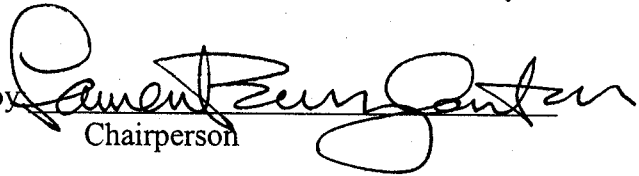
by: 

Carol P. [Brown] Greenberger

APPROVED AND SO ORDERED:

BOARD OF ALLIED MENTAL HEALTH
PRACTITIONERS

Dated: 8/21/03

by: 

Chairperson

Date of Entry: 8/21/03